

May 25, 2022
Rules & Policy Subcommittee Meeting
Via Zoom

Paul Ruseau: Call to order

Roll: Paul Ruseau, Chair, Jenny Graham and Melanie McLaughlin members

Also Present: Supt. Marice Edouard-Vincent, Suzanne Galusi, Peter Cushing, Paul D'Alleva, Joan Bowen, Nadine Alkurdi, Lina Alkurdi, Sean Beagan, Peter Cushing, Eunice Browne, Bill Giglio, Jane Hamel

Purpose of meeting: Finish Draft a Student Dress Code

Paul Ruseau: We have had two meetings on this topic so far. Hopefully this will be the last one. Sharing the current policy we have been drafting.

Under Universal Dress Code (pointing out suggested changes proposed by administrators)
Change in physical activity to physical education
Core values and associated guidelines of this policy: added by Suzanne Galusi
In front of other students - approved by Jenny Graham
Paul going through other edits

Suzanne Galusi: Understanding this dress code will serve PK through Grade 12. At elem. level, we do outside recess. Proper attire to participate in a safe manner in case of low temperatures.

Paul Ruseau: ensure safety in certain academic settings
Profanity: The case that put this issue in motion was profanity on attire. Supreme Judicial Court says we can prohibit this. I don't want a school setting where kids are all wearing clothing with profanity but we don't want to go against what the court says.

Paul D'Alleva: Leaving profanity in the policy is good but having guidelines so we are all on the same page would be appreciated. Policy and protocol are two different things. If we could agree on certain words causing enforcement of the policy.

Paul Ruseau: The meaning of "profane" changes over time. Queer was profane in my day but today it is acceptable. It is not uncommon for people to whisper gay as if there is something profane or wrong. Who will be the arbiter of this from an implementation standpoint. There is not a hotline you can call.

Ms. Galusi: I would like to clarify a few things. I am not as tied to profanity as I am to swear words. I went through this proposal with my principals to get their input. I want to make sure elementary children are not coming to school with swear words.

Supt. Marice Edouard-Vincent: When I see profanity I think of swear words. Young people do change the meanings of words, sometimes giving multiple meanings. There can be inappropriate symbols or letter reversals/substitutions where you know what the intent is. It is a moving target.

Paul Ruseau: The people who will be enforcing the profane will have a different idea than the students.

Melanie: What is legally permissible vs. what Medford's core values are. Workaround can be deemed offensive. If profanity is not the legal term, deemed offensive might suffice.

Jenny Graham: Can you tell us what the supreme judicial court ruled?

Paul Ruseau: read ruling (Hadley and ??)

Jenny Graham: I am not in favor of the behavior on the guise of disruption. Maybe there is a separate bullet about profanity being discouraged and the admin be able to step in to act if it is disruptive to the environment.

Mr. Beagan: You're dancing around the issue whether you use vulgarity, obscenity or profanity. The word on the clothing is absolutely going to be in the opinion of the staff member viewing the word. You can remove profanity and throw in a synonym and it will fall under the discretion of the teacher/principal.

Dr. Cushing: I would be concerned about not having something in there about this. Case Law has placed a higher degree of scrutiny on mass public schools, it doesn't limit the ability of school leaders to make determinations. I don't want to open a door that would be difficult to close. The reaction in the hadley case was due to an egregious overreaction by the school leadership.

Paul Ruseau: The right to have an education is also a right so that is how I view that freedom of speech should not limit that right. The word "disruptive" has been sadly misused and is a way to make sure that girls' bodies are not visible. I got a barrage of emails from students on the new policy.

Melanie McLaughlin: Getting back to Mr. Beagan's point, using a synonym is fine.

Paul Ruseau: For me putting it in there that they may not wear these things.

Proposed revision:

Clothing that displays profanity or other vulgarities can disrupt the learning environment. School leaders reserve the right to address disruptions on a case by case basis.

Paul Ruseau:

Looking at “cover bathing suits and undergarments worn as clothing.”

Suzanne Galusi:

I am open to more specificity to the language.

Paul D’Alleva;

We do have swim classes at the high school now so someone might wear one to save time on changing. I have seen mostly male students doing this. Some wordsmithing might help alleviate what is what.

Peter Cushing: Generally it is considered good hygiene to change clothing after exercise. I worry about this inviting students to push the envelope here. How are we growing as an organization to understand where students and families are at the same time as instilling professionalism in our students.

Supt. Marice Edouard-Vincent: As for covering of the bathing suits, a few bullets up where we are explicit about not showing parts of their body. We do specify a top and a bottom and footwear.

Jenny Graham; I don’t want students sent home if bra straps are showing but what we are trying to say is that we don’t want to see your underwear.

Paul Ruseau: Girls are not responsible for the reactions of their fellow students and teachers to their bodies.

Jenny Graham: That is why I was thinking by stating “intentionally showing undergarments” would cover it.

Suzanne Galusi: The comment “will cover” was meant to be covered in this meeting. There are areas where I thought we should have a discussion about it before coming to a determination of the language.

Sean Beagan: Cover a potential loophole here: a boy could show up in a speedo bathing suit and that too would provoke a reaction. Bikini briefs boy or girl and bikini tops are not considered a top just to avoid the day when they walk through the door.

Paul Ruseau: One comment from a student was that cheerleaders attire sometimes is questionable in relation to the dress code policy. This is a gendered conversation.

Parent, Jane Hamel: I appreciated a top, bottom and footwear. I would like the policy to not punish for bra straps showing.

Jenny Graham: I agree. Back to the part, intentionally showing private parts is not allowable. Thinking about a notion that a majority of the undergarment is covered.

Paul Ruseau: I am personally for calling out bra straps not being an issue.
(made edit)

Melanie McLaughlin: I understand the intention but when you start parsing out what undergarments mean, it gets into the minutia. Undergarments is a vague term.

Supt. Marice Edouard-Vincent: by saying undergarments we are covering all of it. This is a happy medium and removing the piece about the bathing suit.

Paul D'Alleva: I agree with Supt. Marice Edouard-Vincent, that undergarments covers this. I personally do not get involved with female students on clothing because it leads to other problems. This is what I mean as protocol, we as a team we would discuss that bra straps are not part of the policy.

Melanie McLaughlin: I am thinking that you do address dress code issues as a team approach? Female AP would deal with females. I can easily pull a male aside.

Jenny Graham: When I think of a team approach, I don't believe you are suggesting sexism. The point of this policy is to take the implicit sexism off the table. If the admin continues to deal with the dress code that way, it will be an issue.

Melanie McLaughlin; That is not what I heard. So much of this can be subjective. I heard that we are being sensitive to the needs of individual students on how we present our concerns to avoid further embarrassment. Not that we are targeting girls or boys more. It is a gendered conversation.

Paul Ruseau: I believe we covered all the parts that needed to be reviewed. Is there a motion to report this out favorably?

Melanie McLaughlin: Motion to present the language out as is.

Jenny Graham: Yes Melanie: Yes Paul Ruseau: Yes

Jenny Graham 3 in the affirmative.

Thanks to everybody. We can revisit this. It is not set in stone.

Motion to adjourn: Melanie

Jenny Graham, Melanie McLaughlin, Paul Ruseau 3/0

Meeting adjourned at 6:15.

[Link to Revised Policy Draft to be sent to School Committee](#)